

Analysis

Request for Production No. 1: Plaintiffs state in the Joint Status Report the issue is resolved subject to the reservation of Plaintiffs' right to seek an order compelling production of additional design or discretionary-approval documents should deposition testimony establish that such documents exist. This request, thus, is denied, as moot.

RFP No. 20: Plaintiffs argue the geographic scope produced by Defendant is too narrow, and Defendant should be compelled to produce a total range of 2.25 miles. The Court disagrees.

Plaintiffs argue the range includes intersections that have been modified within the last ten years, and thus may have had a similar configuration to the accident location in the past. In opposition, Caltrans submits a declaration stating the extended area requested "are not the same as, nor substantially similar to, the subject location.... These intersections do not exhibit roadway features, lane configurations, or directional orientation similar to those of the subject location, and therefore are not substantially similar." Wong Decl., ¶ 7. In support of its request, Plaintiff argues Caltrans "spent approximately \$113.85 million on corridor improvements". Pltf. Am. Sept. Stmt., 3:19-20. However, Plaintiffs only argue, without proof, the extended range may have included substantially similar areas in the past. On balance, Plaintiffs have failed to persuasively show that the request is reasonably calculated to lead to the discovery of admissible evidence. No good cause has been established to justify further discovery.

RFP No. 25: Plaintiffs again argue Caltrans limitation of the geographic scope is too narrow, and Caltrans should be compelled to produce a report that covers the requested range. The Court disagrees.

As discussed above, Plaintiffs have failed to show the request is reasonably calculated to lead to the discovery of admissible evidence. As such, the request for further production is denied.

6. CU0002301 Jill Wichmann vs. Granite Wellness Centers

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

7. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District, et al.

Petitioners' petition for relief from Government Code section 945.4 pursuant to Government Code Section 946.6 is denied.

"A copy of [a] petition [under Code of Civil Procedure section 946.6] and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on ... the clerk or secretary or board of the local public entity, if the respondent is a local public entity...." Gov. Code, § 946.6(d)(1). In addition, service of the petition must be "effected in the same manner as service of summons in order to give the court jurisdiction to enter an order against the public entity." *Thierfeldt v. Marin Hosp. Dist.* (1973) 35 Cal.App.3d 186, 200.

At bar, the Petition was served by mail, with no returned acknowledgment of service, on: Tahoe Forest Hospital District; County of Nevada, Clerk of the Board of Supervisors; Tahoe Forest Hospital District, Director of Quality and Regulations. See 7/20/26 POS. There is no indication the Petition was served on the “clerk or secretary or board of the local public entity” in accordance with the requirements of Code of Civil Procedure section 1005. As such, the Court lacks jurisdiction to consider the petition.

8. CU0001544 Caitlin Peters vs. Cara Krpalek, et al.

Defendant Jiri Krpalek’s demurrer to the complaint is sustained without leave to amend as to the seventh cause of action and is sustained with leave to amend as to the first through sixth causes of action. Plaintiff is granted leave to amend within ten (10) days of notice of this Court’s order.

Untimely Opposition

Plaintiff filed an untimely opposition on September 16, 2026. There is no proof of service suggesting it was served on Defendant Jiri Krapalek. The Court, in the exercise of its discretion, declines to consider this untimely and seemingly unserved opposition. See, e.g., *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 (“A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the [applicable] deadline without a prior court order finding good cause for late submission.”); *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 (“Pro. per. litigants are held to the same standards as attorneys.”).

Legal Standard on Demurrer

On demurrer, a court’s function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff’s claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.

“If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted.” *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6.